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APPLICATION NO.	FILING DATE	FIRST NAMED INVENTOR	ATTORNEY DOCKET NO.	CONFIRMATION NO.
12/925,647	10/26/2010	N.B. Baktha Reddy	1007	7155

34325 7590 04/20/2012
STANLEY H. KREMEN
4 LENAPE LANE
EAST BRUNSWICK, NJ 08816

EXAMINER

HOFFMAN, SUSAN COE

ART UNIT	PAPER NUMBER
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1655

NOTIFICATION DATE	DELIVERY MODE
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04/20/2012

ELECTRONIC

Please find below and/or attached an Office communication concerning this application or proceeding.

The time period for reply, if any, is set in the attached communication.

Notice of the Office communication was sent electronically on above-indicated "Notification Date" to the following e-mail address(es):

uspto@patentsgroup.com

Office Action Summary	Application No.	Applicant(s)	
	12/925,647	REDDY ET AL.	
	Examiner	Art Unit	
	Susan Hoffman	1655	

-- The MAILING DATE of this communication appears on the cover sheet with the correspondence address --

Period for Reply

A SHORTENED STATUTORY PERIOD FOR REPLY IS SET TO EXPIRE 3 MONTH(S) OR THIRTY (30) DAYS, WHICHEVER IS LONGER, FROM THE MAILING DATE OF THIS COMMUNICATION.

- Extensions of time may be available under the provisions of 37 CFR 1.136(a). In no event, however, may a reply be timely filed after SIX (6) MONTHS from the mailing date of this communication.
- If NO period for reply is specified above, the maximum statutory period will apply and will expire SIX (6) MONTHS from the mailing date of this communication.
- Failure to reply within the set or extended period for reply will, by statute, cause the application to become ABANDONED (35 U.S.C. § 133). Any reply received by the Office later than three months after the mailing date of this communication, even if timely filed, may reduce any earned patent term adjustment. See 37 CFR 1.704(b).

Status

- 1) ☒ Responsive to communication(s) filed on 2/22/12 and 12/28/11.
- 2a) ☒ This action is **FINAL**. 2b) ☐ This action is non-final.
- 3) ☐ An election was made by the applicant in response to a restriction requirement set forth during the interview on ____; the restriction requirement and election have been incorporated into this action.
- 4) ☐ Since this application is in condition for allowance except for formal matters, prosecution as to the merits is closed in accordance with the practice under *Ex parte Quayle*, 1935 C.D. 11, 453 O.G. 213.

Disposition of Claims

- 5) ☒ Claim(s) 1-7 and 16 is/are pending in the application.
- 5a) Of the above claim(s) ____ is/are withdrawn from consideration.
- 6) ☐ Claim(s) ____ is/are allowed.
- 7) ☒ Claim(s) 1-7 and 16 is/are rejected.
- 8) ☐ Claim(s) ____ is/are objected to.
- 9) ☐ Claim(s) ____ are subject to restriction and/or election requirement.

Application Papers

- 10) ☐ The specification is objected to by the Examiner.
- 11) ☐ The drawing(s) filed on ____ is/are: a) ☐ accepted or b) ☐ objected to by the Examiner.
Applicant may not request that any objection to the drawing(s) be held in abeyance. See 37 CFR 1.85(a).
Replacement drawing sheet(s) including the correction is required if the drawing(s) is objected to. See 37 CFR 1.121(d).
- 12) ☐ The oath or declaration is objected to by the Examiner. Note the attached Office Action or form PTO-152.

Priority under 35 U.S.C. § 119

- 13) ☐ Acknowledgment is made of a claim for foreign priority under 35 U.S.C. § 119(a)-(d) or (f).
- a) ☐ All b) ☐ Some * c) ☐ None of:
1. ☐ Certified copies of the priority documents have been received.
 2. ☐ Certified copies of the priority documents have been received in Application No. ____.
 3. ☐ Copies of the certified copies of the priority documents have been received in this National Stage application from the International Bureau (PCT Rule 17.2(a)).

* See the attached detailed Office action for a list of the certified copies not received.

Attachment(s)

- | | |
|--|---|
| 1) ☒ Notice of References Cited (PTO-892) | 4) ☐ Interview Summary (PTO-413) |
| 2) ☐ Notice of Draftsperson's Patent Drawing Review (PTO-948) | Paper No(s)/Mail Date. ____ |
| 3) ☐ Information Disclosure Statement(s) (PTO/SB/08) | 5) ☐ Notice of Informal Patent Application |
| Paper No(s)/Mail Date ____ | 6) ☐ Other: ____ |

DETAILED ACTION

1. The amendment filed February 22, 2012 has been received and entered. The response filed December 19, 2011 has been considered. The text of those sections of Title 35, U.S. Code, not included in this action can be found in a prior Office action. Any rejection set forth in a previous Office action that is not specifically set forth below is withdrawn.
2. Claims 1-7 and 16 are pending.
3. In the reply filed on June 27, 2011, applicant elected *Pongamia pinnata* and *Lawsonia alba* for the species. In the amendment filed February 22, 2012, applicant amended the claims to require all four of *P. pinnata*, *L. alba*, *Datura alba*, and *Cocos nucifera*.
4. Claims 1-7 and 16 are examined on the merits.

Claim Rejections - 35 USC § 103

5. Claims 1-7 and 16 are rejected under 35 U.S.C. 103(a) as being unpatentable over "Karanja" composition (The Ayurvedic Pharmacopoeia of India – Part I, Vol. I, End. 1st, Reprinted – 2001, Govt of India, Ministry of Health & Family Welfare, Deptt. Of I.S.M. & H., New Delhi, page 63), Nayak (Phytotherapy Research (2007), vol. 21, pp. 827-831), Priya (Journal of Ethnopharmacology (2002), vol. 83, pp. 193-199), and "Vranahar Taila" composition (Vaidyamanorama: Central Council for Research in Ayurveda & Siddha, Govt. of India, New Delhi, 2005, pp. 104).

The "Karanja" composition is taught as an extract from *P. pinnata* which is useful for treating ulcers and wounds.

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Nayak teaches using *L. inermis* to treat wounds. *L. inermis* is synonymous with *L. alba* (see <http://www.ewg.org/skindeeph/ingredient.php?ingred06=703508>).

Priya teaches using *D. alba* extract to treat wounds.

The "Vranahar Taila" composition is an oil formulation from *C. nucifera* for treating wounds.

These references show that it was well known in the art at the time of the invention to use the claimed ingredients in compositions that treat wounds. It is well known that it is prima facie obvious to combine two or more ingredients each of which is taught by the prior art to be useful for the same purpose in order to form a third composition which is useful for the same purpose. The idea for combining them flows logically from their having been used individually in the prior art.

Based on the disclosure by these references that these substances are used in compositions to treat wounds, an artisan of ordinary skill would have a reasonable expectation that a combination of the substances would also be useful in creating compositions to treat wounds. Therefore, the artisan would have been motivated to combine the claimed ingredients into a single composition. No patentable invention resides in combining old ingredients of known properties where the results obtained thereby are no more than the additive effect of the ingredients. See MPEP section 2144.06, *In re Kerkhoven*, 626 F.2d 846, 850, 205 USPQ 1069, 1072 (CCPA 1980), *Ex parte Quadranti*, 25 USPQ2d 1071 (Bd. Pat. App. & Inter. 1992).

The references do not specifically teach adding the ingredients in the percentages claimed by applicant. The amount of a specific ingredient in a composition is clearly a result effective parameter that a person of ordinary skill in the art would routinely optimize. "[W]here the

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general conditions of a claim are disclosed in the prior art, it is not inventive to discover the optimum or workable ranges by routine experimentation." In re Aller, 220 F.2d 454, 456, 105 USPQ 233, 235 (CCPA 1955). The references teach that each of the claimed ingredients is an active ingredient. An artisan of ordinary skill would routinely modify the amount of pharmaceutically active ingredients based on the patient's age, weight, gender, and condition. Therefore, an artisan would have been motivated to modify the amount of each ingredient in the combination in order to formulate a product that best achieves the desired results set forth in the references. Thus, absent some demonstration of unexpected results from the claimed parameters, this optimization of ingredient amount would have been obvious at the time of applicant's invention.

The references also do not specifically teach formulating the composition into an ointment or a cream. However, as discussed above, the references do teach using the composition topically. Ointments and creams are well known topical compositions. Thus, an artisan of ordinary skill would be motivated to formulate the composition taught by the references into these known forms.

The references also do not specifically teach that the composition has all of the uses claimed by applicant. However, a recitation of the intended use of the claimed invention must result in a structural difference between the claimed invention and the prior art in order to patentably distinguish the claimed invention from the prior art. If the prior art structure is capable of performing the intended use, then it meets the claim.

The composition suggested by the references does not require the presence of any active ingredients other than *P. pinnata*, *L. alba*, *D. alba*, and *C. nucifera*. Thus, the composition suggested by the reference is considered to consist essentially of these ingredients.

This is a new ground of rejection necessitated by applicant's amendment. However, applicant's arguments filed December 19, 2011 have been considered and are answered inasmuch as they apply to this new ground of rejection. Applicant argues that "Nayak uses *L. alba* along with other herbs." However, Nayak only administers *L. alba* in combination with water (see "Plant material and extract preparation," page 828). No other herbal ingredients are required by Nayak.

Applicant also argues that "merely because it is known that ingredient A, B, C, and D are effective individually, a person of ordinary skill would not necessarily know to combine these ingredients in effective amounts in order to optimize treatment." However, it is well established that it is *prima facie* obvious to combine together individual ingredients that are known to be useful for the same purpose (see MPEP section 2144.06, *In re Kerkhoven*, 626 F.2d 846, 850, 205 USPQ 1069, 1072 (CCPA 1980), *Ex parte Quadranti*, 25 USPQ2d 1071 (Bd. Pat. App. & Inter. 1992). An artisan would be motivated to combine the claimed ingredients into a single composition based on their known shared purpose and to determine the effective amount of each ingredient for this shared purpose. Such determination is well within the skill of the ordinary artisan.

In addition, applicant argues that the combination of the four ingredients is synergistic compared to the individual ingredients. However, applicant provides no specific data that show

to support this assertion. Furthermore, in response to applicant's argument that the claimed invention has different results than the prior art, the fact that applicant has recognized another advantage which would flow naturally from following the suggestion of the prior art cannot be the basis for patentability when the differences would otherwise be obvious. See *Ex parte Obiaya*, 227 USPQ 58, 60 (Bd. Pat. App. & Inter. 1985).

6. No claims are allowed.

Applicant's amendment necessitated the new ground(s) of rejection presented in this Office action. Accordingly, **THIS ACTION IS MADE FINAL**. See MPEP § 706.07(a). Applicant is reminded of the extension of time policy as set forth in 37 CFR 1.136(a).

A shortened statutory period for reply to this final action is set to expire THREE MONTHS from the mailing date of this action. In the event a first reply is filed within TWO MONTHS of the mailing date of this final action and the advisory action is not mailed until after the end of the THREE-MONTH shortened statutory period, then the shortened statutory period will expire on the date the advisory action is mailed, and any extension fee pursuant to 37 CFR 1.136(a) will be calculated from the mailing date of the advisory action. In no event, however, will the statutory period for reply expire later than SIX MONTHS from the date of this final action.

Any inquiry concerning this communication or earlier communications from the examiner should be directed to Susan Hoffman whose telephone number is (571)272-0963. The examiner can normally be reached on Monday-Thursday, 8:30-5:30.

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If attempts to reach the examiner by telephone are unsuccessful, the examiner's supervisor, Terry McKelvey can be reached on (571) 272-0775. The fax phone number for the organization where this application or proceeding is assigned is 571-273-8300.

Information regarding the status of an application may be obtained from the Patent Application Information Retrieval (PAIR) system. Status information for published applications may be obtained from either Private PAIR or Public PAIR. Status information for unpublished applications is available through Private PAIR only. For more information about the PAIR system, see <http://pair-direct.uspto.gov>. Should you have questions on access to the Private PAIR system, contact the Electronic Business Center (EBC) at 866-217-9197 (toll-free). If you would like assistance from a USPTO Customer Service Representative or access to the automated information system, call 800-786-9199 (IN USA OR CANADA) or 571-272-1000.

/Susan Hoffman/
Primary Examiner, Art Unit 1655

Notice of References Cited	Application/Control No. 12/925,647	Applicant(s)/Patent Under Reexamination REDDY ET AL.	
	Examiner Susan Hoffman	Art Unit 1655	Page 1 of 1

U.S. PATENT DOCUMENTS

*		Document Number Country Code-Number-Kind Code	Date MM-YYYY	Name	Classification
	A	US-			
	B	US-			
	C	US-			
	D	US-			
	E	US-			
	F	US-			
	G	US-			
	H	US-			
	I	US-			
	J	US-			
	K	US-			
	L	US-			
	M	US-			

FOREIGN PATENT DOCUMENTS

*		Document Number Country Code-Number-Kind Code	Date MM-YYYY	Country	Name	Classification
	N					
	O					
	P					
	Q					
	R					
	S					
	T					

NON-PATENT DOCUMENTS

*		Include as applicable: Author, Title Date, Publisher, Edition or Volume, Pertinent Pages)
	U	"Karanja" composition (The Ayurvedic Pharmacopoeia of India – Part I, Vol. I, End. 1st, Reprinted – 2001, Govt of India, Ministry of Health & Family Welfare, Deptt. Of I.S.M. & H., New Delhi, page 63).
	V	"Vranahar Taila" composition (Vaidyamanorama: Central Council for Research in Ayurveda & Siddha, Govt. of India, New Delhi, 2005, pp. 104).
	W	
	X	

*A copy of this reference is not being furnished with this Office action. (See MPEP § 707.05(a).)
Dates in MM-YYYY format are publication dates. Classifications may be US or foreign.

Search Notes 	Application/Control No. 12925647	Applicant(s)/Patent Under Reexamination REDDY ET AL.
	Examiner SUSAN HOFFMAN	Art Unit 1655

SEARCHED			
Class	Subclass	Date	Examiner
none	none		

SEARCH NOTES		
Search Notes	Date	Examiner
Searched all inventor names on PALM; USPT; PGPB; JPAB; EPAB; DWPI; EMBASE; MEDLINE; BIOSIS; CAPLUS (see enclosed)	8/17/11	/sh/
updated (see enclosed)	4/17/12	/sh/
TKDL search: ("pongamia pinnata" OR "pongamia glabra") AND ("lawsonia alba" OR "lawsonia inermis") AND ("datura alba" OR "datura innoxia") AND ("cocos nucifera" OR coconut)	4/17/12	/sh/

INTERFERENCE SEARCH			
Class	Subclass	Date	Examiner

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